

**IN THE LAHORE HIGH COURT, RAWALPINDI
BENCH, RAWALPINDI
JUDICIAL DEPARTMENT**

- (i) **RFA No. 63 of 2012**
Province of Punjab etc. Vs. Haji Salah-ud-Din
- (ii) **RFA No. 64 of 2012**
Province of Punjab etc. Vs. Shahid Mehmood
- (iii) **RFA No. 65 of 2012**
Province of Punjab etc. Vs. Zaheer-ud-Din
- (iv) **RFA No. 66 of 2012**
Province of Punjab etc. Vs. Farrukh Mehmood Mughal
- (v) **RFA No. 67 of 2012**
Province of Punjab etc. Vs. Noor Muhammad etc.
- (vi) **RFA No. 68 of 2012**
Province of Punjab etc. Vs. Haji Nazir Ahmad
- (vii) **RFA No. 69 of 2012**
Province of Punjab etc. Vs. Sheikh Salah-ud-Din
- (viii) **RFA No. 108 of 2012**
Province of Punjab etc. Vs. Tariq Mehmood

JUDGMENT

Date of hearing: 24-06-2021

Appellants by: Ch. Shamas Tabraiz, AAG

Respondents by: Mr. Shahid Mehmood Butt and
Zaheen Akhtar Siddiqui, Advocates

ABID HUSSAIN CHATTHA, J.:- This common Judgment shall decide the titled appeals since all the appeals filed under Section 54 of the Land Acquisition Act, 1894 (the "Act") arise from the common Award No. 5 of 2000 dated 21.07.2000 and identical separate Judgments and Decrees dated 12.11.2011 involving common questions of law and fact. The Respondent in each titled appeal shall hereinafter be collectively referred to as (the "Respondents"). **A**

2. The brief facts of these appeals are that the Appellants for construction of Overhead Bridge over Railway Crossing SKHP at Taxila in village Gheela, Tehsil Taxila, District Rawalpindi acquired the land of the Respondents fully described and listed in the body of respective References. Notification under Section 4 of the Act was issued by the District Collector, Rawalpindi on 22.10.1998 and the same was published in the Punjab Gazette on 16.09.1999. The notification under Section 17(4) of the Act was also published in the Punjab Gazette on 16.02.2000. The declaration under Section 6 of the Act was issued by the Commissioner, Rawalpindi on 12.02.2000. The total land acquired for the aforesaid purpose was 04 kanals. The specific Properties of the Respondents in these appeals were included in the total land measuring 04 kanal. Eventually, the Award No. 5 of 2000 was issued on 21.07.2000 in which compensation @ of Rs. 40,000/- per Marla was fixed.

3. Feeling aggrieved, the Respondents filed their respective References under Section 18 of the Act. The Respondents contended before the Referee Court that the market value and the potential value of the acquired property was not determined in accordance with various factors as enunciated in various pronouncement of the Hon'ble Supreme Court of Pakistan. The Respondents are holders of small portions of land which have been badly damaged on account of aforesaid Overhead Bridge and the measurement of the acquired Property was not correctly made. It was submitted that the value of the acquired property was not less than Rs.1,000,000/- per Marla being commercial in nature situated at Faisal Shaheed Road, Taxila which is center of business activities. Not only that the Appellants have not been paid due market value but after the acquisition of the acquired property to the *A*

extent of 6 feet, an irreparable loss has been caused to the Respondents with respect to their remaining respective properties.

4. The Referee Court after framing the issues and recording evidence accepted the References filed by the Respondents and enhanced the compensation from Rs. 40,000/- to Rs. 250,000/- per Marla along with 15% compulsory acquisition charges and 8% interest per annum under Section 28 of the Act from the date of possession till the date of compensation after deducting the amount already received by each respective Respondent.

5. Arguments heard and record perused.

6. The learned Law Officer argued that the assessment made by the Appellants was correct and the Respondents were paid compensation with respect to commercial category of their respective acquired properties. He submitted that the evidence tendered by the Respondents relied upon by the Referee Court is with respect to properties which were located in the adjoining locality and were not area specific. Further, the sale deeds relied upon by the Referee Court are after the date of notification under Section 4 of the Act whereas they should have been before the date of notification under Section 4 of the Act. The properties of the Respondents were acquired in Mouza Gheela whereas the sale deeds exhibited and relied upon by the Referee Court belong to Mouza Gheela Khurd. There were other affectees also, who accepted the Award and did not agitate the matter, however, the present Respondents did not accept the Award and filed References against the Petitioners.

7. On the other hand, the Respondents submitted that they were not paid due consideration. The market value and the potential value of the Property was much higher than that was accorded to them in the Award, hence, the impugned Judgment and Decree **A**

passed by the Referee Court, whereby, the compensation was enhanced was in accordance with law. For the last several years, the matter has not been decided and they were running from pillar to post to get due compensation. The learned counsel for the Respondents in support of his contentions relied upon case titled, Haji Muhammad Yaqoob and another vs. Collector, Land Acquisition/Additional Deputy Commissioner, Peshawar, 1997 SCMR 1670 and case titled, Murad Khan through his widow and 13 others vs. Land Acquisition Collector, Peshawar and another, 1999 SCMR 1647.

8. It is an admitted fact that the acquired property is commercial in nature and is situated on main Faisal Shaheed road, Tehsil Taxila. It is also admitted fact that the acquired property was used for different businesses by the Respondents and primarily existed in the form of small shops. The very purpose of acquisition, that is to say, that the construction of Overhead Bridge leads to inevitable conclusion that the property was located in a populous vicinity. It is also evident from the record that irreparable structure loss was occasioned to the Respondents after acquisition. Most of the shops were measured in square feet. The documents exhibited clearly show that shop of 554 feet was sold for Rs. 500,000/- and shop of 360 feet was sold for Rs. 300,000/- (Exhibit P2 & Exhibit P3). The dates of the above referred sale deed are 25.11.1999 and 04.12.1999. Although, the date of notification under Section 4 is 22.10.1998 but the same was published in the Punjab Gazette on 16.09.1999 which was issued on 22.10.1998. It is on this account that the evidence tendered by the Respondents was accepted on the premise that one year average of the sales taking place before the publication of the notification under Section 4 of similar land is merely one of the modes of ascertaining the market value and is not an absolute yardstick for assessment as held in case of, Haji Muhammad Yaqoob A

(supra) and case titled, Province of Punjab through Collector, Attock vs. Engr. Jamil Ahmad Malik and others, 2000 SCMR 870. The objection raised by the learned law officer is not valid since the said sale deeds were exhibited without objection. Similarly, with respect to his objection, that the same are with respect to 'Gheela' and not 'Gheela Khurd' is admittedly argued for the first time before this Court and no such objection was taken before the Referee Court. Even otherwise, in case titled, Sarhad Development Authority N. W. F. P (NOW KPK) through COO/CEO (Officio) and others Versus Nawab Ali Khan and others, 2020 SCMR 265, it has been held by the Hon'ble Supreme Court of Pakistan that in order to determine the potential value of the acquired Property even adjacent and adjoining Mouzas are relevant with respect to prevalent price in the vicinity. The learned law officer submits that after the notification under Section 4 of the Act, the price of the property increased and therefore, the sale deed exhibited by the Respondents should not have been taken into account. The contention is without force, as in the present case, even the shops of the Respondents were not acquired in full but in piecemeal, thereby, causing irreparable loss to the Respondents. Further, the construction of Overhead Bridge does not necessarily increases the value of properties, rather, diminishes the value of the business shops which are often blocked by the construction of the Overhead Bridge. The Appellants could not justify the exceptionally low compensation fixed for the acquired properties of the Respondents in the Award. The Referee Court was justified to enhance the compensation by relying upon the case titled, Collector, Land Acquisition, Mardan and others vs. Nawabzada M. Ayub Khan and others, 2000 SCMR 1322 to take into account the sale deeds tendered by the Respondents in addition to one year average. In the case of Sarhad Development Authority (supra), A

relying upon the previous pronouncements of the Hon'ble Supreme Court of Pakistan various factors have been listed which ought to be taken into account to determine the potential value of the acquired properties. Such considerations include the price which a willing buyer would pay to a willing seller for a property if they voluntarily entered into transaction. Similarly, the prospective use of the acquired properties and the irreparable loss occasioned in the present case are relevant considerations. Even the approximate average sale price of the adjacent land situated in village Gheela for the year 1999 is stated to be Rs. 250,000/- per Marla, whereas, the Collector had fixed the same as Rs. 40,000/- per Marla primarily based on D.C rate which was not justified.

9. It is also noted that the Respondents had prayed for damages and compensation with respect to raising of super structure of their buildings at the time of acquisition which was declined by the Referee Court on account of their failure to produce cogent evidence. In response to Court query, the Respondents categorically stated that they have not filed appeals against the impugned Judgment as they are already being victimized since the date of acquisition and have no further resources to contest this matter anymore.

10. The learned law officer relied upon case titled, Lahore Ring Road Authority and others vs. Mian Mumtaz Ahmad and others **2021 CLC 178**. Each case has its own peculiar facts and circumstances and no hard and fast rule can be laid down for a particular case. The objection of the learned law officer with respect to distinct land was never confronted to the Respondents before the Referee Court. The fact of commercial nature of the properties and their existence in the nature of shops is admitted. The fact that the Respondents were demanding Rs. 1,000,000/- per Marla whereas the **A**

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Referee Court allowed them enhancement to the extent of Rs. 250,000/- per Marla which is four time less than the claimed amount is also on record. Having considered the record and the arguments of the respective parties, these appeals are without merit and are accordingly **dismissed with no orders as to costs.** The Judgment and Decree passed by the Referee Court is maintained.

(Abid Hussain Chattha)
Judge

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